THE POLICE ACT, 1888

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1. Title and extent.
2. Constitution of police forces for special purposes.
3. Employment of police officers beyond the province to which they belong.
4. Consent of Provincial Government to exercise of powers and jurisdiction.

THE PAKISTAN CODE

THE POLICE ACT, 1888

[1]Act No. III of 1888

An Act to amend the Law relating to the regulation of Police

[17th February, 1888]

WHEREAS it is expedient to relax those provisions of Acts for the regulation of police which restrict the employment of police-officers to the presidency, province or place of the police establishment of which they are members; It is hereby enacted as follows:—

1. Title and extent.—(1) This Act may be called the Police Act, 1888.

[2][(2) It extends to the whole of Pakistan]; [3]*

[3][* * * * * * *]

[4][2. Constitution of police forces for special purposes.—(1) Notwithstanding anything in [5]* * *, the Police Act, 1861(V of 1861), [6]* * * [7]* * *, the [8][Federal Government] may, by notification [9]in the official Gazette, create a special police district embracing parts of two or more Provinces, and extend to every part of the said district the powers and jurisdiction of members of a police force belonging to any part of [10][Pakistan (Bom. IV of 1890)] specified in the notification.

(2) Subject to any orders which the [8][Federal Government] may make in this behalf, members of the said police force shall have, within every part of any Province of which any part is included in the said district, the powers, duties, privileges and liabilities which, as police officers, they have in their own Province.

(3) Any member of the said police force whom the [8][Federal Government] shall generally or specially empower to act under this sub-section may, subject to any orders which the l[Federal Government] may make in this behalf, exercise within any Province any part of which is included in the said district any of the powers of the officer in charge of a police-station in that Province, and when so exercising any such powers, shall, subject to any such order as aforesaid, be deemed to be an officer in charge of a police-station discharging the functions of such an officer within the limits of his station.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1888, Pt. V, p. 130; for Report of the Select Committee, *see ibid*., 1888, Pt. IV, p. 8; and for Proceedings in Council, *see ibid*., 1887, Pt. VI, p. 100, and *ibid*., 1888, pp. 37 and 40.
This Act has been declared to be in force in Balochistan by the British Balochistan Laws Regulation, 1913 (2 of 1913).
It has also been extended to the Leased Areas of Balochistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Balochistan, see Gazette of India, 1937, Pt. I, p. 1499.

[2]Sub-section (2) as amended by A. O., 1949, Arts. 3(2) and 4, has been subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960). s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).

[3]The word "and" at the end of sub-section (2), and sub-section (3), were rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 and Sch. II.

[4]Subs. by A. O., 1937, for the original section as amended by the Amending Act, 1891 (12 of 1891).

[5]The words and figures "the Madras District Police Act, 1859", omitted by A. O., 1949, Sch.

[6]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.

[7]The words "or any Act relating to the Police in any Presidency-town", omitted, *ibid.*

[8]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

[9]For such notifications, see Gen. R. & O., and the Gazette of India, 1937, Extraordinary, dated 1st April, 1937, pp. 671 and 672, and ibid., Pt. I, pp. 873 and 1553.

[10]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".

(4) A part of a Province included in the said district shall not by reason of that inclusion cease, for the purposes of any enactment relating to police, to be part of that Province.

3. Employment of police officers beyond the province to which they belong. Notwithstanding anything in any of the Acts mentioned or referred to in the last foregoing section, but subject to any orders which the [1][Federal Government] may make in this behalf, a member of the [2][police force] of any [3][Province] may discharge the functions of a police-officer in any part of [4][Pakistan] beyond the limits of the [3][Province] and shall, while so discharging such functions, be deemed to be a member of the [2][police force of that part and be vested with the powers, functions and privileges, and be subject to the liabilities, of a police officer belonging to [5][that police force].

[6][**4. Consent of Provincial Government to exercise of powers and jurisdiction.** Nothing in this Act shall be deemed to enable the police of one Province to exercise powers and jurisdiction in any area within another Province, not being a railway area, without the consent of the Government of that other Province.]

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Date: 05-09-2024

[1]Subs. *ibid*., for "Central Government" which had been subs. by A. O., 1937. for "G. G. in C.".

[2]Subs. by A.O., 1937, for "police-establishment".

[3]Subs. *ibid*., for "presidency, province or place".

[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O.,1949, Arts. 3 (2) and 4, for "British India".

[5]Subs. by A.O., 1937, for "that establishment".

[6]Ins. *ibid*., cf., the Govt. of India Act, 1935, Sch. VII. List I, entry 39.

THE POLICE (INCITEMENT TO DISAFFECTION) ACT, 1922

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2. Definition
3. Penalty for causing disaffection, etc.
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5. Sanction to trial of offences by subordinate Courts
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THE SCHEDULE

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THE POLICE (INCITEMENT TO DISAFFECTION) ACT, 1922

ACT No. XXII of 1922

[5th *October*, 1922]

An Act to provide a penalty for spreading disaffection among the police and for kindred offences.

WHEREAS it is expedient to penalize the spreading of disaffection among the police and other kindred offences; It is hereby enacted as follows: —

1. Short title, extent and commencement.—(1) This Act may be called the Police (Incitement to Disaffection) Act, 1922.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force in any Province or part of a Province on such date[4] as the [2][Provincial Government] may, by notification in the [2][official Gazette], direct.

[*]**2. Definition.** In this Act the expression "member of a police-force" means any person appointed or enrolled for the performance of police duties under any enactment specified in the Schedule.

3. Penalty for causing disaffection, etc. Whoever intentionally causes or attempts to cause, or does any act which he knows is likely to cause, disaffection ; towards [3][Pakistan] or the Government established by law in [1][Pakistan] [4][* * *] amongst the members of a police-force, or induces or attempts to induce, or does any act which he knows is likely to induce, any member of a police-force to withhold his services or to commit a breach of discipline shall be punished with imprisonment which may extend to six months, or with fine which may extend to two hundred rupees, or with both.

Explanation.— Expressions of disapprobation of the measures of the Government with a view to obtain their alteration by lawful means, or of disapprobation of the administrative or other action of the Government, do not constitute an offence under this section unless they cause or are made for the purpose of causing or are likely to cause disaffection.

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4. Saving of acts done by police associations and other persons for certain purposes. Nothing shall be deemed to be an offence under this Act which is done in good faith—

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch.
[2]Subs. by A. O., 1937.
[3]Subs. by the Central Laws (Adaptation) Order, 1961 (P. O. No. 1 of 1961), Art. 2 and Sch.
[4]Omitted by the Adaption of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[*]Subs. by the Federal Laws (Revision & Declaration) Ordinance, 1981 (XXVII of 1981), s. 5 (only to the extent of Islamabad Capital Territory) to read as
"**2. Definition** In this Act, the expression "member of a police-force" means any person appointed or enrolled for the performance of police duties under the Police Act, 1861 (V of 1861), or the Police Act, 1888 (III of 1888)."

(a) for the purpose of promoting the welfare or interest of any member of a police-force by inducing him to withhold his services in any manner, authorised, by law; or

(b) by or on behalf of any association formed for the purpose of furthering the interests of members of a police-force as such, where the association has been authorised or recognised by the Government and the act done is done under any rules or articles of the association which have been approved by the Government.

5. Sanction to trial of offences by subordinate Courts. No Court shall proceed to the trial of any offence under this Act except with the previous sanction, or on the complaint, of the District Magistrate [1][* * *].

6. Trial of cases.— (1) No Court inferior to that of a [1][* * *] Magistrate of the first class shall try and offence under this Act.

(2) Notwithstanding anything contained in Chapter XXII of the Code of Criminal Procedure, 1898 (V of 1898), no offence under this Act shall be triable summarily.

[2]THE SHEDULE
(*See* section 2)

Year	No.	Short title
		Acts of the Governor General in Council.
[1][* *	*	* * * * * *]
1861	V	The Police Act, 1861.
[1][* *	*	* * * * * *]
1888	III	The Police Act, 1888.
1892	V	The Bengal Military Police Act, 1892. Madras Act.
[1][* *	*	* * * * * *]
1890	IV	*Bombay Act.* The Bombay District Police Act, 1890.
[1][* *	*	* * * * * *]
		Bengal Acts.

[1]Omitted by the Adaptation of Central Acts & Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[2]This schedule stood omitted to the extent of ICT by the Federal Laws (Revision & Declaration) Ordinance, 1981 (XXVII of 1981), s. 5 and 4th Sch.

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[1][* *	*	* * * * * *]
[1][* *	*	* * * * * *]
[1][* *	*	* * * * * *]
1920	II	The Eastern Frontier Rifles (Bengal Battalion) Act, 1920.
		Burma Act.
[1][* *	*	* * * * * *]
		Assam Act.
[1][* *	*	* * * * * *]
		Regulation by the Governor General in Council.
[1][* *	*	* * * * * *]

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Dated: 25-02-2025

[1]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.

THE PAKISTAN RAILWAYS POLICE ACT, 1977

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THE PAKISTAN RAILWAYS POLICE ACT, 1977

[1]Act No. VII of 1977

[9th January, 1977]

An Act to provide for the constitution and regulation of the Pakistan Railways Police

[2][WHEREAS it is expedient to provide for the constitution and regulation of the Pakistan Railways Police for the safety of passengers and goods transported by licensees, the protection of Railway, the prevention, inquiry and investigation of offences committed in relation to Railway and for matters connected therewith;]

It is hereby enacted as follows:—

_____

CHAPTER I

1. Short title, extent, application and commencement.—(1) This Act may be called the Pakistan Railways Police Act, 1977.

(2) It extends to the whole of Pakistan.

(3) It shall apply to all members and officers of the Pakistan Railways Police wherever they may be.

(4) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

THE PAKISTAN CODE

(a) 'Chief Executive' means a person appointed by the Federal Government to manage the Pakistan Railways, by whatever name called;

(b) 'Code' means the Code of Criminal Procedure, 1898 (Act V of 1898).

(c) 'competent authority' means any officer or authority designated as such by the Federal Government;

(d) 'Inspector-General' means the Inspector-General of the Pakistan Railways police or any person for the time being performing the duties of the Inspector-General;

[1]For Statement of Objects and reasons, *see* Gaz., of P., 1976 Ext., Pt. III, pp. 1230-31.
[2]Subs. by Ord. 92 of 02, s 44, sch.

(e) ‘member’ means a person, other than an officer, who is appointed to the Pakistan Railways Police and has signed an affirmation in the form set out in the First Schedule;

(f) ‘offence’ means an offence punishable under this Act or under any other law for the time being in force;

(g) ‘officer’ means a person who is so appointed to the Pakistan Railways Police and has signed an affirmation in the form set out in the First Schedule;

(h) ‘Officer-in-Charge of Railway Police Station’ means any person appointed as such by the competent authority and includes, when the officer-in-charge of the Railway Police Station is absent from the station-house or is unable by reason of illness or any other cause to perform his duties, the member present at the station-house who is next in rank to such officer and is above the rank of a constable;

(i) ‘Provincial Police’ means the police constituted by a Provincial Government under the Police Act, 1861 (V of 1861).

(j) ‘Railway’ means railway as defined in the Railways Act, 1890 (IX of 1890) including rolling stock as defined in the said Act, but excluding—

(i) such lines of rail as lie outside the territorial limits notified under section 3; and

(ii) such fixed installations as lie outside the territorial limits notified under section 3 and are classified by the Federal Government as key points;

[1][(ja) “railway employee” means railway employee as defined in the Railway Regulatory Authority Ordinance, 2002 (of 2002)]

(k) ‘regulations’ means regulations made under this Act; and

(l) ‘rules’ means rules made under this Act.

CHAPTER II

3. Power to constitute, control and maintain the Pakistan Railways Police and its functions.—(1) Notwithstanding anything contained in any other law for the time being in force, the Federal Government may constitute, control and maintain a force to be called the Pakistan Railways Police for performing, within such territorial limits as the Federal Government may, by notification in the official Gazette, specify the following functions, namely:—

[1]Ins. by Ord. 92 of 2002 s. 44 and Sch.

(a) preventing loss to Railway property and property consigned to the Railways and prevention of offences in respect thereof;

(b) ensuring proper conduct of persons on the Railways;

(c) general maintenance of law and order on the Railways and taking cognizance of offences committed on them;

(d) to render all possible assistance to passengers and [1][railway employees;]

(e) to protect travellers from injury to person or property;

(f) to keep Railway platforms and other Railway premises clear of idlers and beggars and to keep a lookout for suspicious persons, smugglers and persons travelling with arms without a licence or in contravention of rules, regulations or orders for the time being in force;

(g) to search empty carriages for property left behind by passengers and to take possession of such property for due disposal under the law;

(h) to control and regulate movement and parking of hackney carriages and mechanically propelled vehicles at Railway Stations and to enforce the regulations of the Railway authorities with regard to them;

(i) to bring to the notice of the appropriate Railway authorities any contravention, breach or violation of any law of which the Pakistan Railways Police cannot itself take cognizance; and

(j) such other functions connected with the purposes of this Act as the Federal Government may, by notification in the official Gazette, require the Pakistan Railways Police to perform.

THE PAKISTAN CODE

(2) Without prejudice to the powers conferred on it by or under this Act, the Federal Government may, in relation to the Pakistan Railways Police exercise all powers which, under the Police Act, 1861 (V of 1861) and the Code, are exercisable by a Provincial Government in relation to the Provincial Police.

4. Constitution superintendence and administration of the Pakistan Railways Police.—(1) The Pakistan Railways Police shall be constituted in such manner as may be prescribed by rules.

(2) The head of the Pakistan Railways Police shall be an Inspector-General who shall administer it in accordance with the provisions of this Act and the rules and regulations, and such orders and instructions as may be made or issued by the Federal Government from time to time.

[1] Subs., of Ord. 92 of 2002, s.44 and sch.

(3) The Inspector-General shall exercise his powers and perform his functions under the general supervision of the Chief Executive.

5. Transfer of Provincial Railway Police and Railway Watch and Ward to the Pakistan Railways Police.—(1) Notwithstanding anything contained in any other law for the time being in force or any contract, agreement or any condition of service, —

(a) all persons holding any rank or post, not above the rank or post of Superintendent, in or under the Railway Police of any Province; and

(b) all persons holding any rank or post in the Railway Watch and Ward;

shall, subject to such conditions as may be laid down by the Federal Government, stand transferred and appointed to such corresponding ranks or posts in or under the Pakistan Railways Police as may be notified by the Federal Government.

(2) If, at any time, the Federal Government considers that the services of any person referred to in clause (a) of sub-section (1) are no longer needed by the Pakistan Railways Police, the Federal Government may, by order in writing, revert such person to the Police of the Province, to which he belonged immediately before the commencement of this Act.

6. Ordinance No. XXIII of 1969 not to apply to the Pakistan Railways Police. Nothing contained in the Industrial Relations Ordinance, 1969 (XXIII of 1969), shall apply to, or in relation to, the Pakistan Railways Police.

7. Appointment of officers of the Pakistan Railways Police. For the purposes of this Act, the Federal Government may, by notification in the official Gazette, appoint any person to be—

(a) the Inspector-General of the Pakistan Railways Police ;

(b) a Deputy Inspector-General of the Pakistan Railways Police;

(c) a Superintendent of the Pakistan Railways Police; and

(d) an officer with any other designation.

8. Appointment of members and ministerial staff.—(1) The Inspector-General, or an officer to whom the power is delegated by the Inspector-General, may appoint members and ministerial staff and determine the duties to be performed by them.

(2) Appointments under sub-section (1) shall be made by direct recruitment or promotion or transfer from any other force or any department of the Federal Government or a Provincial Government in such manner as may be prescribed by rules.

THE PAKISTAN CODE

(3) The officers and members and ministerial staff shall receive such pay, pension, allowances and other remuneration, and shall enjoy such other privileges, as may be prescribed by rules.

(4) Every officer and member, other than the Inspector-General, shall receive a certificate in the form set out in the Second Schedule under the seal of the Inspector-General or such other officer as the Inspector-General may authorise in this behalf and, by virute of holding such certificate, he shall be vested with the powers, functions and privileges of an officer or member, as the case may be.

(5) Any person who ceases, for any reason, to be an officer or member shall forthwith surrender the certificate referred to in subsection (4) to any officer authorised by the Inspector-General in this behalf, together with the uniform and equipment, if any, issued to him.

(6) Officers and members of the Pakistan Railways Police shall wear such uniforms as may be prescribed by regulations.

9. Powers of officers and members of the Pakistan Railways Police.—(1) The Inspector-General shall exercise the powers of an Inspector-General of Police under the Police Act, 1861 (V of 1861).

(2) The Inspector-General shall, in respect of the officers, members and ministerial staff, have all the powers conferred on him by or under this Act.

(3) An officer or member shall, in respect of [1][Railway],—

(a) for the purpose of inquiry, investigation, arrest, trial and prosecution, exercise all the powers conferred on an officer or member of Police under the Police Act, 1861 (V of 1861), and the Code [2][* * * * * *] the Railways Act, 1890 (IX of 1890), this Act and the rules and regulations; [3][* *]

(b) use such arms, ammunition and equipment as may be authorised by theInspector-General, for the purposes of this Act,[4][; and]

[5][(c) for the purpose of arresting without warrant any person whom he is authorised by law to arrest and who is attempting to escape, or has escaped, immediately after the commission of an offence, have the power to pursue such person into any place in Pakistan.]

(4) Officers superior in rank to an officer-in-charge of a Railway Police Station may exercise the same powers, throughout the local areas or jurisdictions to which they are appointed, as may be exercised by such officer within the limits of his station or jurisdiction.

Explanation.—For the purpose of the exercise by the officers and members of the powers of an officer-in-charge of a Railway Police Station under this Act, 'Police Station' means any place declared, generally or specially, by the Federal Government to be a Police Station within the meaning of the 'Code'.

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[1]Subs., by Ord 92 of 2002 s. 44 and Sch.

[2]The brackets and words "(except powers under section 58 thereof)" omitted by the Pakistan Railways Police (Amdt.) Ordinance, 1977 (39 of 1977), s.2.

[3]The word "and" omitted ibid.

[4]Subs. ibid., for full-stop.

[5]Cl. (c) added *ibid*.,

(5) If any officer or member suspects that any property is stolen property and that it is likely to be removed, transferred or otherwise disposed of before an order of the appropriate authority for its seizure is obtained, such officer or member may, by order in writing, direct the owner or any person who is apparently for the time being in possession thereof not to remove, transfer or otherwise dispose of such property in any manner except with the previous permission of that officer or member and such order shall be subject to any order made by the Court having jurisdiction in the matter.

(6) Any contravention of an order made under sub-section (5) shall be punishable with rigorous imprisonment for a term which may extend to one year, or with fine, or with both.

(7) An officer or an officer-in-charge of a Railway Police Station may, for the purposes of this Act, call upon the Provincial Police and the District Magistrate concerned to come to the help of the Pakistan Railways Police and in such a case the Provincial Police and the District Magistrate shall act in the same manner as they act within their own jurisdiction for the maintenance of law and order, for the arrest of offenders and for recovery of persons and property.

CHAPTER IV

10. Appointment of Magistrates and Public Prosecutors. Notwithstanding anything contained in the Code, the Federal Government may, for the purposes of this Act, appoint—

(a) any person to be a Magistrate of the first class within the meaning of the Code; and

(b) any person or officer of the Pakistan Railways Police to be a public prosecutor within the meaning of the Code.

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CHAPTER V

11. Liabilities of officers and members.—(1) It shall be the duty of every officer and member promptly to obey and to execute all orders and instructions issued to him by the competent authority.

(2) Every officer and member shall be liable to serve wherever he is required to serve by the competent authority.

(3) Every officer or member who is guilty of any violation of duty or wilful breach or neglect of any provision of this Act or of any rule or regulation or lawful order made by a competent authority, or who withdraws from his duties without permission, or who, being absent On leave, fails, without reasonable cause, to report himself for duty on the expiration of such leave, or on being recalled to duty earlier, or who engages without authority in any employment other than his

duty under this Act, or Who is guilty of cowardice, or who offers any unwarrantable personal violence to any person in his custody, shall be liable to be proceeded against departmentally, or, on conviction before a Magistrate, to imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

(4) No court shall take cognizance of an offence punishable under sub-section (3) except upon a complaint in writing made by a person authorised in this behalf by the Federal Government.

(5) Any person convicted, under sub-section (3) may, within thirty days from the date of his conviction, file an appeal to the Court of Session having jurisdiction, whose decision thereon shall be final.

12. Indemnity. No suit, prosecution or other legal proceedings shall lie against any person for anything in good faith done or intended to be done under this Act or the rules or regulations.

CHAPTER VI

13. Public servant. Every officer and member of the Pakistan Railways Police shall be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

14. Assets and liabilities.—(1) All rights, properties, assets and liabilities of the Railway Police of a Province shall stand transferred to the Pakistan Railways Police on the commencement of this Act.

(2) The transfer of rights, properties, assets and liabilities under sub-section (1) shall be subject to such terms and conditions as may be agreed upon between the Federal Government and the Provincial Government or, in the absence of such agreement, as may be determined by the President.

THE PAKISTAN CODE

(3) All rights, properties, assets and liabilities of the Railway Watch and Ward shall stand transferred to the Pakistan Railways Police on the commencement of this Act in such manner and to such extent as may be determined by the Federal Government.

15. Delegation of powers by the Federal Government. The Federal Government may, by notification in the official Gazette, delegate all or any of its powers under this Act, except those under section 17, to [1][* * * *] the Inspector-General.

16. Delegation of powers by the Inspector-General. The Inspector-General may, with the prior approval in writing of the Federal Government, delegate all or any of his powers under the rules for the efficient functioning of the Pakistan Railways Police to any officer or member.

17. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules—

[1] omitted by ord. 92 of 02, s.44 and sch.

(a) regulating the functions and powers of the officers including the Magistrates and the public prosecutors;

(b) regulating the grades of, and the remuneration and rewards to be paid to, the officers, members and ministerial staff of the Pakistan Railways Police and their conditions of service;

(c) prescribing and regulating the award of departmental punishments and trial of cases by Magistrates;

(d) appointing the place where a person punished with imprisonment may be kept in custody; and

(e) generally for the purpose of carrying into effect the provisions of this Act.

[1][**18. Power to make regulations**. The Inspector-General may, with the prior approval in writing of the Federal Government, make regulations consistent with this Act and the rules.]

19. Transitional provision. Till such time as the rules and regulations are framed,—

(a) the persons referred to in clause (a) of sub-section (1) of section 5, and the officers and members appointed after the commencement of this Act, shall, so far as may be and with the necessary modifications, be governed by the Punjab Police Rules, 1934; and

(b) the persons referred to in clause (b) of the aforesaid sub-section shall, so far as may be and with the necessary modifications, be governed by the rules governing the Railway Watch and Ward immediately before the commencement of this Act.

20. [*Repeal*]. *Omitted by the Federal Laws (Revision and' Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch, II.*

THE PAKISTAN CODE

[1] Subs by ord. 92 of 02, s.44 and sch.

FIRST SCHEDULE
[*See* section 2(e) and (g)]
FORM OF AFFIRMATION

I, _____son/daughter of _____solemnly affirm in the presence of Almighty Allah that I will bear true faith and allegiance to the Islamic Republic of Pakistan and that I will, as in duty bound, honestly and faithfully serve in the Pakistan Railways Police and go wherever I may be ordered by air, land or sea, and that I will observe and obey all commands of any officer set over me even to the peril of my life.

Signed in acknowledgement of the above having been read out to me.

Person Enrolled
Dated.....

Signed in my presence after I had ascertained that the person understood the purpose of what he/she signed.

Inspector-General,
Pakistan Railways Police
Or
Other Enrolling Officer.

ROMAN—URDU TRANSLATION OF AFFIRMATION

Main _____ WALD/BINT_____ Khuda-e-Taala ko hazir-o-nazir janker iman se iqrar karta/karti hun key main Islami Jamhooria Pakistan ka/ki suche dil se wafadar rahunga/rahungi aur Pakistan Railways Police men imandari aur wafadari se khidmat seranjam doonga/doongi aur hawa, khushki ya tari ke raste jahan bhi jane ka hukam melega jaonga/jaongi aur jise mera afsar muqarar kia jaega uskey her hukam ki tamil aur pairwi karunga/karungi, khah us men jan ka khatra ho.

THE PAKISTAN CODE

_____

SECOND SCHEDULE

[*See* section 8(4)]

CERTIFICATE

Mr./Mrs/Miss _____ has been appointed as officer/member of the Pakistan Railways Police under the Pakistan Railways Police Act, 1977, and is vested with powers, functions and privileges of an officer a member of the Pakistan Railways Police.

Identification of the Officer/Member.

Inspector-General,
Seal of the Pakistan Railways, Police.

Photo of the Officer/Member.

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Last uploaded on 25.9.2023

THE AIRPORTS SECURITY FORCE ACT, 1975

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CHAPTER I

SECTIONS:

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THE AIRPORTS SECURITY FORCE ACT, 1975

[1]ACT No. LXXVII OF 1975

[13th December, 1975]

An Act to provide for the constitution and regulation of the Airports Security Force.

WHEREAS it is expedient to provide for the constitution and regulation of the Airports Security Force for ensuring security of all aerodromes, airports, aircraft and civil aviation installations, and for the maintenance of law and order therein, and for matters connected therewith or ancillary thereto ;

It is hereby enacted as follows:—

CHAPTER I

1. Short title, extent, application and commencement.— (1) This Act may be called the Airports Security Force Act, 1975.

(2) It extends to all aerodromes and airports, all civil aviation stations, centres or offices in Pakistan, all Pakistan air services and activities relating to civil aviation.

(3) It shall apply to all members and officers of the Force wherever they may be.

(4) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

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(a) "aerodrome" means any area of land or water designed, equipped, set apart or commonly used or intended to be used, either wholly or in part, for affording facilities for the landing, departure and movement of aircraft and includes all buildings, sheds, vessels, piers, installations and equipments, and other structures thereon or appertaining thereto, but does not include any aerodrome which is exclusively used by the Pakistan Air Force or any portion of an aerodrome which is used by the Pakistan Air Force ;

(b) "aircraft" means any machine which can derive support in the atmosphere from the reactions of the air, other than the reactions of the air against the earth's surface, and includes balloons, whether captive or free, airships, kites, gliders and flying machines ;

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[1]For Statement of Objects and Reasons, see Gaz. of P., 1975, Ext., Pt.III, p.1027.

(c) "airport" means an aerodrome at which facilities have, in the opinion of the Federal Government, been sufficiently developed to be of importance to civil aviation;

(d) "air service" means a service of aircraft for any purpose of civil aviation, whether aerial work, public transport or otherwise ;

(e) "air side" means the movement area of an aerodrome, adjacent terrain and buildings or portions thereof, access to which is controlled by the [1][force];

(f) "competent authority" means any officer or authority designated as such by the Federal Government ;

[1]* * * * * * *

(h) "Force" means the Airports Security Force constituted under section 3 ;

(i) [2][Director General] means the Commander incharge of the Force;

[1]* * * * * * *

(k) "member" means a person, other than an officer, who is appointed to the Force and has signed an affirmation in the form set out in the First Schedule ;

(1) "officer" means a person who is so appointed to the Force and has signed an affirmation in the form set out in the First Schedule ;

(m) "operator" means a person, organisation or enterprise engaged in or offering to engage in aircraft operation ;

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(n) "prescribed" means prescribed by rules or regulations ;

(o) "purposes of civil aviation" include all purposes connected with civil aviation and with air navigation, except purposes of defence by air ;

(p) "regulations" means regulations made under this Act ; and

(q) "rules" means rules made under this Act.

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[1] Subs. and omitted by the Air Ports Security Force (Amdt.) Ordinance, 1984 (35 of 1984), s.3
[2] Subs by Act No.XXV of 2012, s 2

CHAPTER II

3. Power to constitute and maintain the Airports Security Force and its functions.—(1) The Federal Government may constitute and maintain a force to be called the Airport Security Force for performing the following functions, namely :—

(a) ensuring security of all airports, aerodromes, aircraft and civil Aviation installations [1][within the limits of airports and aerodromes] and for safeguarding civil aviation against acts of unlawful interference or threats of such interference ;

(b) ensuring security of all structures, equipments, material and installations belonging to operators and other Government or non-Government organisations within the limits of airports and aerodromes ;

[1]* * * * * * *

[1]* * * * * * *

(e) ensuring the proper conduct of persons at airports and aerodromes [1]* * * including control of surface vehicles and drivers within the limits of airports and aerodromes ;

(f) ensuring security of aircraft passengers, baggage, cargo and mail within the limits of airports and aerodromes ;

(g) general maintenance of law and order within the limits of airports and aerodromes in conjunction with the police and taking cognizance of all offences committed at the airports and aerodromes under any law for the time being in force ; and

(h) such other functions as the Federal Government may, by notification in the official Gazette, require the Force to perform.

(2) In the discharge of their functions, the officers and members shall be guided by, and act in accordance with, this Act, [2]* * * and the rules and regulations.

4. Constitution of the Airports Security Force.- (1) The head of the Force shall be a [3][Director General] appointed by the Federal Government.

(2) The Force shall consist of such ranks and number of officers and members and shall be constituted in such manner as may be prescribed by rules.

(3) The officers and members shall receive such pay, pension, allowances and other remuneration and shall enjoy such leave and other privileges as may be prescribed by rules from time to time.

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[1]Ins. and omitted by the Air Ports Security Force (Amdt.) Ordinance, 1984 (35 of 1984),s.4.

[2]Certain words which were previously subs. by Ord. 27 of 1981, s.3 and Sch.II have been omitted by the Airports Security Force (Amdt.) Ordinance, 1984 (35 of 1984),s.4

[3]Subs by Act No XXV of 2012, S.2.

(4) Every officer and member shall receive on his appointment a certificate in the form set out in the Second Schedule under the seal of the [1][Director General] or such other officer as the [1][Director General] may authorise in this behalf and by virtue of holding such certificate he shall be vested with the powers, functions and privileges of an officer or member.

(5) Any person who ceases, for any reason, to be an officer or member shall forthwith surrender the certificate referred to in subsection (4) to any officer authorised by the [1][Director General] in this behalf.

(6) Officers and members of the Force shall wear such uniforms as may be prescribed by regulations.

5. Administration of the Force.— (1) The administration of the Force shall vest in the [1][Director General] who shall administer it in accordance with the provisions of this Act, rules and such orders and instructions as may be made or issued by the Federal Government from time to time.

(2) The [1][Director General] shall exercise his powers and perform his functions under the general supervision [2][and direction of the Federal Government].

CHAPTER III

6. Powers and duties of officers and members.- (1) An officer or member shall—

(a) take effective measures for ensuring security of all airports, aerodromes, aircraft and civil aviation installations [3][within the limits of airports and aerodromes] and for safeguarding civil aviation against acts of unlawful interference;

(b) safeguard aircraft passengers, baggage, cargo and mail within the limits of aerodromes and airports ;

(c) prevent unauthorised persons and vehicles from access to the air-side or other areas important to the security of the aerodromes of airports ;

(d) require the operations of aircraft registered in Pakistan to conform to the prescribed civil aviation security requirements ;

[3][(e) take effective measures for preventing hijacking, sabotage, placement of car bombs, letter bombs and dangerous articles and carriage of arms and ammunitions into the restricted areas of the airports, aerodromes and aircraft except as authorised by him, and shall, as soon as he detects any contraband on the person or in the baggage of any person checked by him, notify it to the customs staff available at the airport or aerodrome for appropriate action under the Customs Act, 1969 (IV of 1969);]

[1]Subs by Act No XXV of 2012, S.2.
[2]Subs by the Airports Security Force (Amdt.) Ordinance, 1984,s.5.
[3]Ins .and subs ibit., s.6.

(f) use such arms and ammunition and equipment as may be authorised by the [1][Director General] [2][or an officer authorised by him] for the purposes of this Act ;

(g) search and arrest without warrant any person who he suspects of endangering, or attempting to endanger, or having endangered, the safety of an aerodrome or airport or an aircraft or a civil aviation installation and may use such force as may be necessary in the discharge of his duties aforesaid ; and

(h) perform such other functions as the competent authority may require him to perform.

[3][1A) The [1][Director General] may, with the previous approval of the Federal Government, call for military assistance in connection with post-landing and anti-hijacking operations at an airport or aerodrome; and, when he does so, all officers and members and all civil agencies operating at the airport or aerodrome shall function in accordance with the directions of the military authority rendering such assistance.]

(2) An officer, for the purpose of this Act, shall exercise, within the areas in which this Act applies, all the powers conferred on an officer-in-charge of a police station under the [1][Police Order, 2002 (Chief Executive's Order No. 22 of 2002)], and the Code of Criminal Procedure, 1898 Act (V of 1898).

7. Liabilities of officers and members. (1) It shall be the duty of every officer and member promptly to obey and execute all orders and instructions issued to him by any competent authority.

(2) Every officer and member shall be liable to serve wherever he is required to serve by the competent authority.

[4]* * * * * * *

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[1]Subs by Act No XXV of 2012, S.2.
[2]Ins. Ibid
[3]Ins. by the Airports Security Force (amdt.) Ordinance 1984 (35 of 1984), s.6.
[4]Omitted ibid. , s.7.

[1][CHAPTER IV]

7A. Officers and members to be subject to the Pakistan Army Act, 1952.— (1) Every officer and member of the Force shall, unless he is already so subject, be subject to the Pakistan Army Act, 1952 (XXXIX of 1952) hereafter in this Chapter referred to as the Act.

(2) The [2][Director General] shall, in respect of all officers and members of the Force, have all the powers conferred by or under the Act on an officer empowered to convene a general court martial.

(3) Subject to sub-section (2), the Federal Government may, by general or special order, direct by what authority any jurisdiction, powers or duties incidental to the operation of the provisions of the Act shall be exercised or performed in respect of the Force.

[3][(4) Notwithstanding anything contained in any other law for the time being in force, except the authorities specified in sub-sections (1) and (2) of section 7F, no other authority, tribunal or court shall have jurisdiction to vary, modify; alter, annual, set aside, revise or review any order passed by any officer of the Force, authorised under the Pakistan Army Act, 1952 (XXXIX of 1952).

7B. Consequence of sentence of imprisonment. An officer or member of the Force who is sentenced to imprisonment for a term which is not less than ninety days shall be deemed to have been dismissed from the Force.

7C. Suspension. Any officer shall be competent to suspend in the prescribed manner a member of the Force working under him for any mis-conduct, remissness or negligence in the discharge of his duties.

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7D. Place of imprisonment. If a member of the Force sentenced under the Act to imprisonment for a term shorter than ninety days is also dismissed from service, he shall be imprisoned in the nearest prison or such other prison as the Federal Government may, by general or special order, direct; but if he is not so dismissed, he may be confined in a quarter guard or such other place as the [2][Director General] may consider suitable.

7E. Capture of deserters.— (1) Whenever any person subject to the Act deserts, the Chief Security Officer shall give written information of the desertion to such civil authorities as in his opinion may be able to afford assistance towards the capture of the deserter and such authorities shall thereupon take steps for the apprehension of the said deserter in like manner as if he were a person for whose apprehension a warrant had been issued by a Magistrate, and shall deliver the deserter, when apprehended, into the custody of the Force.

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[1]Ins. *ibid*., s. 8.

[2]Subs by Act No XXV of 2012, S.2.

[3]New sub-section (4) added by the Airports Security Force (Amdt.) Act 1994, (16 of 1994),s.2.

(2) Any police officer may arrest without warrant any person whom he reasonably believes to be subject to the Act and a deserter or absentee without leave and bring him without delay before the nearest Magistrate to be dealt with according to law.

7F. Appeal and revision.—(1) In all cases decided by the [1][Director], a Chief Security Officer or any other officer, a person aggrieved may, within thirty days of the order, appeal to the officer higher than the one awarding the punishment.

(2) A person aggrieved by an order of the [1][Director General] awarding any punishment may, within thirty days of the order, apply to the Federal Government for revision.

7G. Appointment of officers and other members of the Force.— [1][(1) The Federal Government may, by notification in the official Gazette, appoint a Deputy Director-General (Coordination) and such number of Directors, Deputy Directors, Assistant Directors and Deputy Assistant Directors as it may think fit.]

(2) The [1][Director General] may appoint, within the cadre strength sanctioned by the Federal Government, such number of Inspectors, Sub-Inspectors, Assistant Sub-Inspectors, [1][Sergeants] and [1][Corporals] as he may consider necessary for the efficient performance of the functions of the Force.

(3) The rank structure of the officers and other members of the Force *vis-a-vis* the Pakistan Army shall be such as may be prescribed by rule.]

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[1]Subs by Act No XXV of 2012, SS.2.4.5.

[1][CHAPER V]

8. Indemnity. No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done, or intended to be done, under this Act or the rules or regulations.

9. Delegation of powers by the Federal Government. The Federal Government may, by notification in the official Gazette, delegate all or any of its powers under this Act, except those under section 11, to the [2][[3][Director General] or such officer as it may deem fit.]

10. Delegation of powers by the Director-General. The [3][Director General] may, by notification in the official Gazette and with the prior approval in writing of the Federal Government, delegate all or any of his powers under the rules for the efficient functioning of the Force to any officer or authority subordinate to him.

11. Power to make rules. The Federal Government may, by notification in the official Gazette, make [4]rules —

(a) regulating the functions and powers of the officers;

(b) regulating the classes and grades of, and the remuneration and rewards to be paid to, the officers and members of the Force and their conditions of service;

[5]* * * * * * *

[5]* * * * * * *

(e) generally for the purpose of carrying into effect the provisions of this Act.

12. Power to make regulations. The [3][Director General] may, by notification in the official Gazette and with the prior approval in writing of the Federal Government, make regulations consistent with this Act and the rules for carrying out the purposes of this Act.

13. *[Repeal] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Sch.,II.*

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[1]Ins. by the Airport Security Force (Amdt.) Ordinance 1984 (35 of 1984) S.9.
[2]Subs. *ibid*., s. 2.
[3]Subs by Act No XXV of 2012, S.5.
[4]For the Air Ports Security Force (Discipline) Rules, 1977, *see* S.R.O. No. 1027(l)/77, dated the 28th October. 1977 vide Gaz. of P., 1977
Ext.. (Islamabad), Pt. II. pp. 1783—1787.
[5]Omitted by the Air Ports Security Force (Amdt.) Ordinance, 1984 (35 of 1984), s.11

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FIRST SCHEDULE

[*See* section 2 (k) and (1)]

FORM OF AFFIRMATION

I,……solemnly affirm in the presence of Almighty Allah that I will bear true faith and allegiance to Pakistan and that I will, as in duty bound, honestly and faithfully serve in the Airports Security Force and go wherever I may be ordered by air, land or sea, and that I will observe and obey all commands of any officer set over me even to the peril of my life.

Signed in acknowledgement of the above having been read out to me.

Person Enrolled

Date……..

Signed in my presence after I had ascertained that the person understood the purpose of what he signed.

[1]*[Director General]*

or

other Enrolling Officer.

ROMAN URDU TRANSLATION OF AFFIRMATION

Main……Khuda-e-Taala ko Hazir-o-Nazir Janker iman se iqrar karta hun key main Pakistan ka sache dil se wafadar rahunga aur Airports Security Force men imandari aur wafadari se khidmat ka farz baja launga, aur hawa, khushki ya tari ke raste jahan bhi jane ka hukam melega jaonga aur jise mera afsar muqarar kia jaega uskey har hukam ki tamil aur pairwi karunga, khah usmen jan ka khatra ho.

SECOND SCHEDULE

[*See* section 4(4)]

CERTIFICATE

Mr……has been appointed as officer/member of the Airports Security Force under the Airports Security Force Act, 1975 (……..of 1975), and is vested with the powers, functions and privileges of an officer/member of the Force.

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[1]Subs by Act No XXV of 2012, S.2.